

PETITION - ILLINOIS VERIFIED MISTAKEN-IDENTITY PETITION UNDER 20 ILCS 2630/5.2

IN THE COURT

(Illinois circuit where the arrest occurred; addressed to its chief judge)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield, PETITIONER.

Case number assigned by the court:

A. REQUEST FOR MISTAKEN-IDENTITY CORRECTION

I petition the chief judge under the mistaken-identity provisions of 20 ILCS 2630/5.2 to correct records made in my name through identity theft or unauthorized use of my identity. The facts and supporting records are described below.

B. THE PETITIONER

Name: Maria-Alejandra O'Shaughnessy-Whitfield

Date of birth: 1968-12-31

C. CASE INFORMATION TO COMPLETE BEFORE SIGNING

[C1 - identity theft report and mismatched identifiers] Describe the affected record and how the identifiers show that someone else used your name. Identify the attached identity-theft report and supporting identifier evidence.

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.....

[C2 - arrest circuit] Illinois circuit where the arrest occurred:

.....

[C6 - automatic-seal status] State the record's automatic-seal status. If uncertain, ask the circuit clerk or get legal help before filing.

.....

D. RELIEF REQUESTED

I ask the chief judge to correct the arrest or conviction and official records by removing my name and substituting the offender's name if known. An unknown offender name must not be invented.

E. CERTIFICATION UNDER 735 ILCS 5/1-109

Under penalties as provided by law pursuant to Section 1-109 of the Code of Civil Procedure, I certify that the statements set forth in this petition are true and correct, except as to matters stated to be on information and belief and as to such matters I certify that I verily believe the same to be true.

DATE SIGNATURE OF PETITIONER

(Sign and date personally after completing and checking this petition. No notarization is required by this certification.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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39501-2214

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FILING INSTRUCTIONS - ILLINOIS VERIFIED MISTAKEN-IDENTITY PETITION UNDER 20 ILCS 2630/5.2

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

PURPOSE AND FILING COURT

Use this petition for criminal identity theft or mistaken identity under 20 ILCS 2630/5.2. Petition the chief judge of the Illinois circuit where the arrest occurred. This is a record-correction process; an ordinary expungement petition is not a substitute.

BEFORE YOU SIGN

Obtain the identity-theft report and evidence showing the mismatch between your identifiers and those in the affected arrest or conviction record. Attach these records to the petition.

Complete C1, C2 and C6 and the arrest-circuit caption from accurate records. Do not guess case facts, dates or an unknown offender's name.

Review the entire completed petition and its certification under 735 ILCS 5/1-109. Sign and date personally only if its statements are true. The certification does not require a notary.

Leave a new court-assigned case number blank until the court supplies it.

FILING COST AND WAIVER

Confirm the current filing fee and any fee-waiver procedure with the office of the chief judge of the Illinois circuit where the arrest occurred. This packet does not establish a fee amount or a waiver decision.

If you cannot afford a fee, ask about available waiver procedures or legal aid; do not assume inability to pay bars filing.

NOTICE AND SERVICE

Before filing, ask the office of the chief judge of the arrest circuit who must receive notice or service, how to provide it, and whether proof of service is required. Follow the court's instructions; this packet does not certify that anyone has been served.

WHEN TO GET LEGAL HELP

- you are uncertain that someone else used your identity to create the record;
- the arrest or conviction is actually your own, rather than a mistaken-identity record;
- the record may already have been automatically sealed and its status is unresolved;
- you need relief on the separate prostitution or trafficking-related conviction route;
- an immigration issue is involved.